

SENATE No. 3229

Senate, July 29, 2026 -- Substituted as a new draft (Senator Friedman) for the Senate Bill authorizing the Massachusetts Department of Transportation to take easements over certain land located in the city of Woburn and the town of Burlington held in trust by the city of Boston for the Mary P. C. Cummings Testamentary Trust (Senate, No. 3169).

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the Massachusetts Department of Transportation to take easements over certain land located in the city of Woburn and the town of Burlington held in trust by the city of Boston for the Mary P. C. Cummings Testamentary Trust.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to authorize forthwith the commonwealth, acting by and through the Massachusetts Department of Transportation to take certain easements for highway purposes, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public safety and convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding and general or special law to the contrary and pursuant to
2 section 5A of chapter 3 of the General Laws, the commonwealth, acting by and through the
3 Massachusetts Department of Transportation, may take for highway purposes, certain parcels of
4 land located in the city of Woburn and the town of Burlington, held in trust by the treasury of the
5 city of Boston, being temporary construction areas of 4,603 square feet and permanent easements
6 of 8,917 square feet and shown on a plan of land entitled “Massachusetts Department of
7 Transportation Highway Division Intersection Improvement Project Cambridge Road at South

Bedford Street and Bedford Road in the city and town of Woburn/Burlington, Middlesex County Preliminary Right of Way Plans”, on file with the chief engineer of the division of highways of the Massachusetts Department of Transportation and recorded with the Middlesex north registry of deeds.

SECTION 2. In anticipation of and as planned mitigation for the takings described in section 1 of this act and to ensure no-net-loss of land subject to Article 97 of the Amendments to the Constitution of the Commonwealth, the town of Burlington required that land be set aside for future improvements to the intersection of Cambridge road at South Bedford street and Bedford road and Wheeler Self Storage, LLC conveyed a conservation restriction to the town of Burlington on the Wheeler Road property containing approximately 9 acres, which restriction is recorded with the Middlesex south registry of deeds at book 78014, page 433, as stipulated during the May 25, 2025 approval by the town of Burlington of a special permit to Jumbo Self Storage, LLC - Jumbo Capital Management for land located at 7 Wheeler road in the town of Burlington and shown on the town of Burlington assessor's map 52, parcels 4 and 6 and described in conditions G and H of said certain special permit decision granted by the town of Burlington planning board recorded with the Middlesex south registry of deeds at book 71169 and page 469.

SECTION 3. The Massachusetts Department of Transportation shall assume all costs associated with engineering, surveys, appraisals, deed preparation and other expenses necessary to execute the takings authorized by this act.

SECTION 4. This act shall take effect upon its passage.